

Contentious Chamber

Execution Decision 156/2024 of December 6, 2024

File Number: DOS-2023-03283

Subject: Cookie banner on the RTL Belgium website – confirmation of the execution of the compliance orders issued in Decision 131/2024 of October 11, 2024

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President, and Messrs. Christophe Boeraeve and Jelle Stassijns, Members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by noyb – European Center for Digital Rights, located at Goldschlagstraße 172/4/3/2, 1140 – Vienna (AT), registered in Austria under company number ZVR 1354838270, hereinafter referred to as "the complainant"

The defendant: RTL Belgium, whose registered office is located at Avenue Jacques Georgin, 2 – 1030 Schaerbeek, registered under company number 0428.201.847, represented by Laurence Vandenbrouck, hereinafter referred to as "the defendant"

1 The new internal rules of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024.

In accordance with Article 56 of the Law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date:

<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal rules as they existed before that date.

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I. Facts and Procedure

1.

The Contentious Chamber refers to its Decision 131/2024 of October 11, 2024, regarding a complaint concerning the cookie banner on the RTL Belgium website, for all that relates to the description of the facts and procedure, the reasoning, and the ruling.

2.

This decision only concerns the execution of the compliance orders imposed in the aforementioned decision.

II. Reasoning

II.1. Context: Appeal of Decision 131/2024 to the Market Court

3.

RTL Belgium appealed the decision to the registry of the Brussels Court of Appeal (Market Court section) on November 8, 2024. The case is registered under reference 2024/AR/1848. The hearing is scheduled for March 26, 2025. The Contentious Chamber informed the parties (including the representative of the complainant) of the existence of this procedure on November 18, 2024.

4.

Notwithstanding this appeal, Decision 131/2024 is provisionally enforceable in accordance with Article 108, §1, paragraph 2 of the LCA.

II.2. The Orders and Their Execution

5.

Decision 131/2024 issues two orders to RTL Belgium, which are set out in the ruling of the decision as follows:

2 The decision is accessible via the following link:

<https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n0-131-2024.pdf>.

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6.

The orders are further described in points 106 and 107 of Decision 131/2024 as follows:

"Order 1: The Contentious Chamber requires the defendant to add a button that clearly allows for the refusal of cookie placement with a single click, at the same level as the button allowing for the acceptance of cookie placement at each level of the cookie banner where the button for accepting cookie placement is present.

Order 2: The Contentious Chamber requires the defendant to use colors and contrasts that are not obviously misleading. The button clearly allowing for the refusal of cookie placement must thus be displayed at least as prominently as the one allowing for acceptance. The Contentious Chamber specifies that the defendant has the option to retain the colors currently used in its cookie banner provided that it reverses the color used for the button allowing for the refusal of cookie placement with that for accepting it; it refers to point 94 in this regard."

7.

On November 25, 2024, RTL Belgium notified the Contentious Chamber by electronic and registered mail of its compliance with the above orders. Accompanied by several screenshots, RTL Belgium describes how it has complied with the orders. Below are excerpts from the two screenshots that RTL Belgium communicated to the Contentious Chamber.

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II.3. Examination of the Implementation of the Orders Imposed in Decision 131/2024

8.

The Contentious Chamber finds that RTL Belgium has fully complied with the orders issued in Decision 131/2024 of October 11, 2024, within the allotted time.

9.

Therefore, no penalties will be initiated.

III. Publication of the Decision